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U.S. & WORLD

While the political circus distracts us, Flock builds the Digital Police State

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“You had to live — did live, from habit that became instinct — in the assumption that every sound you made was overheard, and, except in darkness, every movement scrutinized.” —

**George
Orwell, 1984**



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The [government is watching](#).

It watches where you go, whom you meet, where you worship, what medical offices you visit, what political rallies you attend, what protests you join, what books you read, what websites you visit and what causes you support.

It watches through your phone, your car, your doorbell, your appliances, your purchases, your social media accounts and the cameras positioned along the roads you travel every day.

This is how freedom dies in the digital police state: not always through dramatic declarations of martial law or soldiers stationed on every street corner, but through the gradual construction of a technological dragnet — an electronic concentration camp — so pervasive that privacy becomes impossible and anonymity becomes suspicious.

Enter [Flock Safety](#), a private surveillance technology company whose automated license plate readers have spread throughout thousands of American communities.

ICYMI

- [Flock's business strategy: Getting us to volun-tell on ourselves for profit](#)
- [Surveillance without consent: How the Shenandoah Valley got wired without anyone asking](#)
- [Report: Virginia police not following new law for use of Flock, ALPR cameras](#)
- [Norfolk: Lawsuit questions legality of 176 Flock Safety cameras in city](#)
- [Staunton to cancel Flock Safety camera contract, citing issues with ideology of CEO](#)

These cameras, which do much more than photograph license plates, represent [the next evolution of the government's public-private surveillance partnership](#).

They document the time and location of every passing vehicle and record identifying characteristics such as its make, model, color, damage, roof racks, bumper stickers and other distinctive features. That information can then be placed in a searchable database and used to retrace a vehicle's movements over time.

Yet the real power — and the real danger — of Flock does not come from the cameras alone.

It comes from artificial intelligence.

AI is what transforms a photograph into the building blocks for a suspect society.

With AI, every driver becomes a data point. Every data point becomes a pattern. And every pattern becomes a suspicion.

This is how ordinary movements become potentially suspect and subject to government scrutiny. It allows law enforcement agencies to search not only for a complete license plate number but also for partial plates and physical descriptions such as vehicle color, make, model, damage, roof racks, bumper stickers and other identifying characteristics.

A police officer might ask the system to locate every red pickup truck with a ladder rack seen near a protest, every vehicle that repeatedly visited a particular address, or every car observed traveling between two locations.

The artificial intelligence does the sorting. The database supplies the history.

The government receives a list of potential suspects.

This is no longer surveillance conducted by individual officers following particular leads. It is surveillance conducted at machine speed, across entire populations, with algorithms deciding whose movements merit further scrutiny.

Consider the scale of what is taking place.

License plate cameras now [log approximately 20 billion vehicle scans every month](#).

Twenty billion.

That is not targeted policing. That is mass collection.

The overwhelming majority of those scans do not involve stolen cars, wanted suspects, kidnappings or violent crimes. They document ordinary people carrying out the ordinary activities of daily life: driving to work, taking children to school, visiting friends, attending church, keeping medical appointments, participating in protests or simply going home.

Yet each of those innocent journeys becomes part of a searchable police database.

At 20 billion scans a month, Flock is not searching for particular suspects and then attempting to follow them. It is recording the movements of everyone so police can decide later whom they want to follow.

billions of observations with everything else the government and its corporate partners know about us.

Flock is also part of a much larger shift toward [AI-powered “data fusion,”](#) in which license plate records are combined with facial recognition results, surveillance video, police reports, social media activity, commercially purchased information, gunshot-detection alerts and other government databases.

The danger is no longer merely that one system can track a car. It is the merger of previously separate streams of information into a single system capable of mapping a person’s movements, relationships, habits and associations.

These systems increasingly do more than provide officers with information to evaluate. They assign significance to associations, flag supposed threats and generate investigative leads — often through proprietary algorithms that neither the accused nor the public can examine.

Artificial intelligence does not eliminate human prejudice, institutional bias or bad information.

It industrializes them.

Feed a flawed system inaccurate data, biased arrest records or constitutionally suspect surveillance, and AI can reproduce those defects at a speed and scale no individual police officer could match.

Once the computer labels someone suspicious, moreover, officers may treat the algorithmic conclusion as objective fact.

The machine accuses. The police act. [The citizen is left to prove that the machine was wrong.](#)

Despite the extraordinary reach of this technology, Flock continues to portray its system as a limited, carefully controlled crime-fighting tool.

Flock insists that its cameras collect information about vehicles rather than people, that agencies control access to their own data, that searches are logged and that information is generally deleted after 30 days. Yet these assurances largely amount to distinctions without a difference.

Vehicles are extensions of the people who drive them.

Track a vehicle long enough, and you know where its owner sleeps, works, worships, shops, socializes, seeks medical treatment and participates in political activity.

That is surveillance.

It does not become less invasive merely because the government has outsourced the cameras, databases and algorithms to a private corporation.

Nor does it cease to be surveillance because police claim that the information may someday be useful in solving a crime.

Indeed, that is the sleight of hand that has allowed the surveillance state to expand so rapidly.

The government no longer has to install every camera, maintain every database or directly collect every piece of information.

It merely encourages private companies, businesses, homeowners' associations, schools and individual consumers to create an interconnected surveillance ecosystem — and then asks for access.

This public-private arrangement allows government agencies to acquire capabilities they might never receive public approval or sufficient funding to build on their own.

It also makes accountability almost impossible.

When abuses occur, local police blame the technology provider. The technology provider insists that local police control the data. Federal agencies claim they merely requested access. Local officials say they were unaware that information could be shared beyond their jurisdiction.

Everyone points elsewhere.

Meanwhile, the American people remain under observation.

Flock has become especially controversial because its network can transform what appears to be a collection of local cameras into something far more powerful: a searchable surveillance system that permits law enforcement agencies to look far beyond their own jurisdictions.

Flock says data sharing among agencies is optional and controlled by its customers. Yet the entire value of such a system lies in its interconnectedness.

A camera in one town is a traffic-monitoring device.

Thousands of cameras connected through searchable databases constitute a movement-tracking network.

That reverses the traditional order of constitutional policing.

Under the **Fourth Amendment**, police are supposed to develop individualized suspicion, establish probable cause and then apply for a warrant to search for evidence connected to a particular person or crime.

Mass surveillance systems begin by collecting information on everyone.

In the process, every innocent person is treated as a potential suspect whose movements must be recorded just in case the government someday decides they are relevant.

This is guilt by algorithm.

It is also the same constitutional inversion at the heart of geofence warrants, which allow police to demand information identifying every cellphone that happened to be near a particular location at a particular time.

The **U.S. Supreme Court's** [recent decision in *Chatrle v. United States*](#) may signal that constitutional scrutiny is finally beginning to catch up with the surveillance state.

The case involved a geofence warrant used to obtain **Google location records** for cellphones near the scene of a robbery. Rather than beginning with an identified suspect, police demanded information about devices that happened to be within a designated area during a particular period and then worked backward to identify their owners.

The Supreme Court held that police conduct a Fourth Amendment search when they obtain an individual's cellphone location history from a technology company.

That conclusion matters.

It rejects the government's increasingly convenient argument that intimate information loses constitutional protection merely because a private corporation collected, stored or analyzed it.

The Court did not rule on Flock cameras or automated license plate databases. Nor did it decide that every geofence demand is necessarily unconstitutional. The justices left it to the **Fourth Circuit** to determine whether the warrant satisfied the Fourth Amendment's probable-cause and particularity requirements at each stage of the search.

Nevertheless, the constitutional principle at the heart of *Chatrle* extends far beyond cellphones.

data broker or an interconnected network of privately owned cameras.

A detailed record of a person's movements does not become less revealing because it follows a vehicle rather than a phone. The government should not be permitted to accomplish through Flock what it could not constitutionally accomplish by assigning police officers to follow millions of Americans everywhere they drive.

Indeed, Flock may present an even more troubling inversion of constitutional policing.

Geofence searches generally begin with a particular crime, location and period. Flock continuously collects information on millions of vehicles before any crime has occurred and before any individual is suspected of wrongdoing.

Police can then reach backward into that stored history and reconstruct a person's movements.

The surveillance comes first. Suspicion comes later.

A warrant, when one is sought at all, may arrive only after the government has already built the database it intends to search.

Chatrie may provide constitutional ammunition for challenging this arrangement, but [no single court ruling will dismantle the machinery of mass surveillance](#).

The technology is already embedded in thousands of communities.

The databases are already being populated.

The agencies are already connected.

And the companies profiting from this infrastructure will fight to preserve it.

Unfortunately, constitutional protections have rarely kept pace with the government's appetite for surveillance.

The dangers are no longer theoretical.

Flock data has reportedly been used in investigations far removed from the serious violent crimes routinely invoked to justify these systems.

This is the inevitable trajectory of every surveillance technology. First, it is introduced as an emergency measure. Then it is justified as a crime-fighting tool. Then it is expanded to lesser

of daily life that no longer attracts attention because everyone has become accustomed to being watched.

[That is how mission creep works.](#)

Surveillance powers created to find kidnappers and violent criminals do not remain limited to kidnappers and violent criminals.

Databases built to locate stolen vehicles do not remain limited to stolen vehicles.

Government agencies cannot resist the temptation to use whatever power is available to them, especially when the use of that power is cheap, easy and largely hidden from the public.

The technology's potential for error makes this even more dangerous.

License plate readers can misread plates, rely on inaccurate hot lists or associate an innocent vehicle with a crime. Once the system issues an alert, officers may treat the computer-generated result as fact.

The individual on the receiving end may be pulled over, surrounded by armed police, handcuffed, searched or detained before anyone discovers that the machine was wrong.

This is not justice. It is automated suspicion.

Flock is only one component of a surveillance ecosystem that includes doorbell cameras, facial recognition, drones, cellphone tracking, biometric databases and real-time crime centers.

The result is [360-degree surveillance](#).

A person may leave a home monitored by a smart doorbell, drive past a network of license plate readers, enter a business equipped with facial recognition, carry a phone broadcasting location data and return home along streets monitored by police cameras and private security systems.

At no point does the government need to physically follow that individual, because the infrastructure does it automatically.

Algorithms sort the information. Databases preserve it. Private companies monetize it. Government agencies search it.

All of this is taking place while the country remains locked in an endless partisan cage match.

Once the infrastructure exists, there is no guarantee that it will be used only against people you dislike or with whom you disagree politically.

That is the lesson Americans repeatedly refuse to learn.

A surveillance tool created by one administration will be inherited by the next. A database assembled for one purpose will inevitably be used for another. A system established to monitor “them” will eventually be turned against “us.”

Communities across the country are finally beginning to recognize the danger.

Some cities have terminated or declined to renew their Flock contracts. Others have paused deployments or demanded stronger restrictions on data sharing, retention and federal access.

This resistance is long overdue.

We cannot afford to become so distracted by the theater of politics that we fail to notice the architecture of tyranny being assembled around us.

The surveillance state does not care which party you support. It does not care whom you voted for.

It does not care whether you believe you have nothing to hide.

The cameras are watching. The databases are growing. The networks are connecting.

And as I make clear in [Battlefield America: The War on the American People](#) and its fictional counterpart [The Erik Blair Diaries](#), unless we act now, there may soon be nowhere left to go without the government knowing exactly where we have been.

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POLITICS TRUMP'S AMERICA

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Constitutional attorney and author John W. Whitehead is founder and president of [The Rutherford Institute](#). His most recent books are the best-selling [Battlefield America: The War on the American People](#), the award-winning [A Government of Wolves: The Emerging American Police](#)

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